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GUATEMALA

Human Rights Developments

As the four-year term of President Alvaro Arzú came to a close, with a new government scheduled to take office in January 2000, impunity for human rights violations remained unbroken. Peace accords signed in December 1996 held out the promise of institutional reforms in the judiciary, police, and military, but these were stymied by the government's inability to confront the authoritarian legacy of Guatemala's thirty-five year internal conflict. Popular support for reforms was clearly on the wane, as constitutional changes that would have formalized some of the key military and judicial reforms were defeated in a national referendum in May. At the same time, the absence of effective law enforcement contributed to the tremendous insecurity of much of the population, as evidenced by an ever greater number of public lynchings.

Impunity for human rights violations carried out during the war featured prominently in political debates, especially with the February release of a report by the United Nations-sponsored Historical Clarification Commission (Comisión de Esclarecimiento Histórico, CEH), also referred to as the truth commission. The product of over eighteen months' labor by over 200 Guatemalan and international personnel, the CEH report documented over 42,000 victims of human rights violations, with state forces and paramilitary groups responsible for 93 percent of the documented cases, the Guatemalan National Revolutionary Unity (Unidad Revolucionaria Nacional Guatemalteca, URNG) insurgents responsible for 3 percent, and unknown parties responsible for the remaining 4 percent. The commission attributed 626 massacres to the army, and thirty-two to the guerrillas, mostly carried out in the early 1980s. The most damning charge, however, was the finding that the army had committed acts of genocide against the Mayan population in four areas of the country between 1981 and 1983.

The CEH report also recommended several measures to promote reconciliation and contribute to ending impunity. These included reforms to the judiciary and security apparatus, as well as a program of reparations for victims of the conflict, the implementation of a policy of exhumations in the hundreds of clandestine cemeteries, an administrative purge of the armed forces, and the creation of a commission (with civil society participation) to follow up on other CEH recommendations. One month after the release of the report, the government responded dismissively to these recommendations by reaffirming its rhetorical commitment to ending impunity, promoting human rights, and the reforms already outlined in the peace accords, while claiming it was not necessary to create another commission to provide follow-up. It also reiterated a statement made by President Arzú on the second anniversary of the peace accords, in which he asked the Guatemalan people to grant their forgiveness for the state's "actions or omissions, for what we did or what we didn't do." While this reaction was deemed "preliminary," the absence of any further official commentary rendered this first position final, implying no further steps would be taken to respond to the CEH's recommendations. The response of the URNG rebels was hardly better: they lamented the "excesses, equivocations or irresponsibilities" their forces committed during the armed conflict, even though the CEH found that such acts were part of a deliberate political-military strategy or carried out under orders from the top leadership.

In May, several U.S.-based groups including Human Rights Watch released a copy of a military log book that documented the activities of a Guatemalan military unit responsible for kidnapping,

torturing, and executing suspected leftists between 1983 and 1985. The log, which contained the names of 183 persons (some, but not all, known to have been executed or disappeared), was smuggled out of military files by a member of the military. The military was reportedly engaged in the destruction of all such incriminating documents early in 1999. Some human rights groups initiated legal proceedings based on the leads provided in that document, and Public Ministry prosecutors were assigned to investigate these cases.

The past was also salient in political debates, during which the demobilized guerrillas of the URNG, now constituted as a political party, participated openly for the first time in electoral politics. The principal contender for executive power, however, was not the left but a conservative party, the Guatemalan Republican Front (Frente Republicana Guatemalteca, FRG), whose secretary general, Gen. Efraín Ríos Montt, was the military ruler from March 1982 until August 1983. The presidential candidate for the FRG, Alfonso Portillo, nearly saw his chances scuttled when the press discovered that he had fled justice in Mexico in 1982, accused of a double homicide he claimed to have committed in self-defense. The judicial case against Portillo was closed in 1995.

Despite years of massive international assistance, the modernization of the judicial system remained a distant reality. U.N. Special Rapporteur on the Independence of Lawyers and Judges Param Cumaraswamy painted a grim picture of Guatemala at the conclusion of his August visit, saying that the justice system had yet to recover from the ills that plagued it during the armed conflict, including corruption, influence peddling, lack of resources, and threats and intimidation to lawyers and judges. Cumaraswamy said he had received information indicating that only 10 percent of all homicide cases went to trial, and of these very few ever resulted in convictions.

The terrible state of the administration of justice in Guatemala was on display in the investigation into the April 1998 murder of Bishop Juan Gerardi, killed just two days after the release of a church-sponsored report on wartime violations. While the first prosecutor focused attention exclusively on Father Mario Orantes, who shared a house with Gerardi and who was arrested shortly after the murder, at the beginning of 1999 a new judge and prosecutor began investigating whether the murder was politically motivated. However, every new piece of evidence gathered had its cost: every significant witness to the case had to flee the country; the ODHA endured numerous threats; Judge Henry Monroy, who moved the case forward, was forced to resign and leave the country after receiving telephone threats; and the subsequent prosecutor, Calvin Galindo, also suffered countless intimidating acts and left the country in early October after resigning from the case.

Another prominent case illustrating the formidable barriers to justice involved the prosecution of a military patrol for the 1995 killings of eleven persons in the returnee community of Xamán in Alta Verapaz, a massacre that MINUGUA deemed to be the most serious human rights violation since its arrival in 1994. After a drawn-out process rife with irregularities (including dilatory tactics by the presiding judge, lack of cooperation from military authorities, and threats to prosecutors), on August 13 a court in Cobán found the second lieutenant who led the patrol and ten soldiers guilty of manslaughter, while another fourteen were found guilty of "complicity" in manslaughter (a crime that did not exist in the Guatemalan penal code). The sentences, five and four years respectively, were commutable by paying five quetzales (approximately U.S. 67 cents) per each day of the sentence, or a total of U.S. \$1,218 for the first group, and \$975 for the second.

Other longstanding attempts to bring human rights violators to justice met with equally disappointing results this year. In April, four civil patrollers serving thirty-year sentences for the 1994 murder of former presidential candidate Jorge Carpio were released by the Third Appellate Court, which cited "grave errors" in the trial court proceedings. Also that month, former military commissioner Cándido Noriega was acquitted for a second time on multiple charges of murder, torture, and rape in a massacre case in Tululché in the department of El Quiché. An appeals court overturned that decision in July, and he was being retried as of this writing. In the case of the 1990 murder of Myrna Mack, three high-ranking former military officers were finally indicted in February, although the case had hardly progressed as of October 1999. Also in October, three former civil patrollers were sentenced to death for their role in the 1982 massacre in Rio Negro, while evidence linking military personnel to the massacre was never investigated.

Guatemala's Constitutional Court issued a disturbing ruling in January, holding that freedom of expression guarantees apply only to members of the press. In September, the Center for Justice and International Law (CEJIL) joined the Guatemalan Archbishop's Human Rights Office (Oficina de Derechos Humanos del Arzobispado, ODHA) in filing a complaint before the Inter-American Commission on Human Rights, claiming that the decision violated the American Convention on Human Rights.

Most human rights concerns stemmed from the continued violence and insecurity that derived from criminal activity and poor social and economic conditions. A report prepared by the Inter-American Development Bank named Guatemala City as the third most violent city in Latin America, based on 1996 figures. The number of lynchings, often but not always carried out by spontaneous mobs against suspected petty thieves, also appeared to have increased. Since 1994, some 250 lynchings had taken place, while only two cases were under investigation as of October 1999.

The government's response to continued criminal activity was to try to meet the peace accord goal of a 20,000-person strong National Civilian Police force (Policía Nacional Civil, PNC) by the year 2000. Due to inadequate recruitment, selection, and training practices (as noted by MINUGUA in its ninth human rights report issued in March), the government instituted quantitative rather than qualitative changes in the new police force. MINUGUA found that police abuses continued to occur, made all the more serious by the lack of effective internal disciplinary mechanisms, and that virtually all PNC officers had been recycled from the unprofessional National Police, Treasury Police or the army, with only a three-month training course.

Under the peace accords, the military was to give up its role in internal security and devote itself principally to external defense. Yet with the defeat of the constitutional reforms in May, the military continued to participate in internal security matters. Military intelligence continued to investigate kidnappings and organized crime, while foot soldiers also participated in joint patrols with civilian police under a 1996 executive decree.

Defending Human Rights

The Arzú government did not always muster even rhetorical support for the work of human rights organizations. In an apparent reference to human rights and other organizations, President Arzú asserted at the OAS General Assembly meeting in Guatemala in June that some NGOs were "cloaked instruments for foreign politics." Subsequently, Guatemala's foreign minister sought to reassure the General Assembly that the Arzú government valued the work of most human rights organizations.

Threats to human rights organizations, witnesses and judicial authorities were nearly routine in all kinds of cases in the judicial system. As noted previously, virtually everyone involved in the Gerardi case faced such threats. In April, three armed men forcibly entered the home of the head of the Archbishop's Human Rights Office, Ronald Ochaeta, threatening his domestic employee and four-year-old son. The men searched the house for forty minutes, and left behind a box containing a concrete block, widely interpreted as an allusion to the probable murder weapon used against Gerardi. Ochaeta and his family subsequently left the country.

Organizations and individuals pushing forward human rights cases in the courts were often the target of threats and harassment, as occurred in August with a family member and a witness in the Carpio case. Forensic workers and observers at various clandestine cemetery sites around the country were also routinely subject to intimidation and threats.

The Role of the International Community

United Nations

Under the 1996 peace accords, the mandate of MINUGUA was due to expire at the end of the year 2000, one year into the next government. Several aspects of the accords would not be completed within the coming year, thus requiring continued international verification. MINUGUA's reports on various aspects of the peace process provided an extensive analysis of the human rights situation.

MINUGUA released a human rights report covering April-December 1998 in March 1999, and over the course of the year issued occasional communiqués on specific human rights issues.

European Union

According to a report by the Washington Office on Latin America (WOLA), the European Union, the largest donor to the Guatemalan police, largely failed to condition its assistance on rectifying anomalies noted by MINUGUA, such as those found in recruitment and selection. This failure contrasted markedly with the stringent conditions the E.U. applied to judicial reform. The European Union was to fund the police with some 34 million ECUS (approximately U.S. \$40 million) between 1998 and 2002.

In August, the Italian Senate cut off economic aid to Guatemala, citing the government's failure to comply with the CEH report recommendations.

United States

The United States provided over \$1 million to fund the work of the Historical Clarification Commission between 1997 and 1999, as well as thousands of pages of declassified documents that aided the commission in understanding both Guatemalan abuses and the U.S. role in them. Following the release of the truth commission report, President Bill Clinton apologized during a March visit to Guatemala for previous U.S. support for abusive military forces: "For the United States, it is important that I state clearly that support for military forces and intelligence units which engaged in violence and widespread repression was wrong, and the United States must not repeat that mistake." This statement received more press coverage abroad than it did in Guatemala, where the U.S. Embassy was widely reported as reacting defensively to criticisms of the U.S. role. Through the U.S. Agency for International Development, the U.S. government continued to support the work of human rights organizations, including authorizing a new fund that sought to support, among other things, civil society follow-up to the recommendations of the CEH report.

The Federal Bureau of Investigations provided DNA testing facilities to assist the prosecution in the Gerardi case, the final results of which were still outstanding as of this writing. Through its International Criminal Investigations Training and Assistance Program (ICITAP), the U.S. could be faulted for not giving due weight to MINUGUA's criticisms of the police, for example, by continuing to train investigators that had been poorly vetted.

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